

OFFICE OF THE SECRETARY

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August 28, 2020

The Honorable Helena R. Gweon
Judge of the Superior Court
County of Sacramento
720 Ninth Street
Sacramento, CA 95814

Re: Carline Balbuena
CDCR No: X33749
Case No: 05F11542
Date of Sentence: September 19, 2008

Dear Honorable Helena R. Gweon:

The purpose of this letter is to provide the court with the authority to resentence Carline Balbuena, X33749 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Balbuena has received zero Rules Violation Reports since her reception to CDCR. Inmate Balbuena is currently unassigned. Inmate Balbuena participates in self-help groups such as; Offender Mentor Recruit, Substance Abuse, New Destiny, Comfort Care Program, Chapel of Grace Prayer Team, Chapel of Grace Worship Service, Honor Dorms' The Cornerstone, 12-Steps a Spiritual Journey, Guitar Class, Basic Ukulele Class, Alternative to Violence Program, Guitar and Music Theory Class, College, Narcotics Anonymous, Domestic Violence, Celebration Recovery Program, Freedom to Choose, The Urban Ministry Institute, Facilitator in the Life Planning Study, Picking up the Pieces, Grief Support Group, Celebrate Recovery Program,

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Biggest Loser Program, Helping Others with Life-Skills, Life Scripting, Freedom to Choose, Lifer and Long-Term Programs, Self Esteem Workshop, Combating Prison Pitfalls Workshop, Training for Trainers Workshop, Purpose Driven Life Workshop, KAIROS Retreat, Co-Dependent Anonymous, Stress Management Workshop, Volunteer Pro-Literacy Tutor, and Conflict Resolution Workshop. Staff indicated inmate Balbuena is quiet, polite, and respectful; "She is doing all the right things."

Having reviewed the enclosed documentation it appears that inmate Balbuena's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that she be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Honorable David De Alba, Presiding Judge
Sacramento County District Attorney's Office
Sacramento County Public Defender's Office